

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by **12:00 p.m.** the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

May 26, 2026

10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	Medina vs. Hernandez 25-01515721	Demurrer to Complaint Continued to 07/07/2026 at 10:00 AM to be heard w/Motion to Strike scheduled for 07/07/2026. Moving party to give notice.
102	Simonoff vs. Chuze Fitness Franchises, Inc. 26-01540347	1. Demurrer to Complaint 2. Motion to Strike Portions of Complaint Defendants CHUZE FITNESS FRANCHISES, INC and RACHAS, INC. dba CHUZE FITNESS (erroneously sued herein as RACHAS, INC.) ("Defendants") demur to Plaintiff's (MALCOLM SIMONOFF) (Plaintiff) Complaint on the grounds that the complaint fails to state facts sufficient to constitute

		a cause of action against the Defendants for gross negligence. Defendants seek an order striking the: 1. Fourth Cause of Action: Gross Negligence. (Complaint at pages 14-15, lines 9-27.) 2. DAMAGES (f.): Punitive damages (where applicable.)” (Complaint at page 17, line 24.) 3. DAMAGES: “Plaintiff also seeks recovery of allowable costs of suit and attorneys’ fees, to the extent authorized by applicable statute and/or contractual agreement, according to proof ...” (Complaint at page 17, lines 25-27.) 4. PRAYER FOR RELIEF (d.): “For punitive damages according to proof, as allowed by law, pursuant to Cal. Civ. Code section 3294” (Complaint at page 18, lines 4-5.) 5. PRAYER FOR RELIEF (f): “... and for reasonable attorneys’ fees to the extent allowable by statute and/or contractual agreement, according to proof” (Complaint at page 18, lines 8-9). Initially, the Court notes the Opposition, filed 5/15/2026, is untimely. The Court will not consider it, as it should have been filed and served on 5/12/2026. 4th c/a for Gross Negligence: Gross negligence is pleaded by alleging the traditional elements of negligence: duty, breach, causation, and damages. (Jones v. Wells Fargo Bank (2003) 112 Cal.App.4th 1527, 1541, 5 Cal.Rptr.3d 835.) However, to set forth a claim for “gross negligence” the plaintiff must allege extreme conduct on the part of the defendant. (Eastburn v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1185–1186, 7 Cal.Rptr.3d 552, 80 P.3d 656 (Eastburn).) The conduct
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alleged must rise to the level of “either a ‘ ‘ ‘want of even scant care’ ” ’ or ‘ ‘ ‘an extreme departure from the ordinary standard of conduct.’ ” ’ [Citations.]” (Santa Barbara, supra, 41 Cal.4th at p. 754, 62 Cal.Rptr.3d 527, 161 P.3d 1095, fn. omitted.)

Rosencrans v. Dover Images, Ltd. (2011) 192 Cal.App.4th 1072, 1082.

Here, in the general allegations (which are incorporated by reference into the 4th cause of action), Plaintiff pleads that he was performing chest-supported weighted dumbbell rows with both arms and hands on the subject equipment when the equipment suffered a catastrophic structural failure. (Complaint¶31.) Plaintiff’s hands and finger became trapped and crushed between the equipment and the dumbbells. (Id.¶32.) Plaintiff alleges that the “bench was visibly broken after the incident, indicating a structural failure, such as a detached or broken component, rather than ordinary wear and tear or patron misuse.” (Id.33.) Plaintiff pleads that “On information and belief, prior to Plaintiff’s injuries, other gym patrons and/or staff observed that the Subject Equipment was unstable, loose, wobbly, or otherwise in need of repair.” (Id.¶44.) Plaintiff pleads that Defendants employed people responsible for inspecting and maintaining equipment, but those people were “untrained, unqualified, and/or incompetent.” (Id.¶48.) Plaintiff also pleads that Defendants failed to employ written maintenance protocols, require staff to have certifications, etc. (Complaint¶49,)

Plaintiff also pleads that Defendants “knew, or should have known, about the hazardous condition of the Subject Equipment, which should have been addressed by basic facility maintenance standards and safety obligations” (Complaint¶46.)

Although a bit general, to the extent these allegations are true (as established through discovery), a jury could determine that an extreme departure from ordinary

		standard of care occurred here. That is, if Defendants knew there was a wobbly bench being used by patrons, and failed to either remedy or warn the patrons of it, this could be deemed gross negligence. Demurrer is OVERRULED. As to the Motion to Strike it is DENIED except as to Item 3 and 5 above, which is GRANTED with 20 days leave to amend. There is no basis for attorney's fees pled in the Complaint. As to punitive damages, ¶51 is sufficient to put Defendants on notice of the claim against them and could warrant punitive damages, if true. Defendants to give notice
103	Nguyen vs. Orange County Transportation Authority 25-01484412	Motion to Be Relieved as Counsel of Record The unopposed motion of attorney Donald Dunham of the Law Offices of Dunham, Ramirez & Van LLP to be relieved as counsel for Plaintiff Tammy Banh Nguyen is GRANTED. Service on the client and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362. The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client. Moving attorney to give notice.
104	Kinecta Federal Credit Union vs. Ogi 25-01509319	Motion to Set Aside/Vacate Default and Judgment Defendant, Jeffrey Masayuki Ogi, moves for an order setting aside and vacating the entry of default and